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File No.: EXP202210468

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 21, 2022, against Ms. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Articles 5.1.c) and 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter, GDPR).

The complainant states that he is a neighbor of the attached house to the respondent's house, having common access areas both to his home and to another neighbor's. He points out that the respondent has installed a plurality of cameras around her house that are directed towards the access ramp to the home of both the complainant and the respondent, as well as a third neighbor, as well as the areas surrounding these houses, without obtaining the consent of those affected, also stating that the area is not adequately marked with the required informative signs of a monitored area.

He provides images of the location of the cameras.

SECOND: In accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

THIRD: Previously, this Agency instructed procedure A/00134/2017 as a result of the complaint filed by the MOSSOS D'ESQUADRA URPA METROPOLITANA NORD against the respondent for the same facts.

In the resolution of that procedure, it was agreed to warn the respondent "(...) to comply within one month from this notification:

☐ COMPLY

with the provisions of Article 6.1 of the LOPD. Specifically, the respondents are urged to justify the removal of the external cameras that are directed towards common passage areas of neighbors, or their relocation or reorientation so that they do not capture disproportionate images of that area. They can prove the adoption of these measures, for example, through photographs that evidence the removal of the camera or photographs showing what the camera captures once it has been relocated or reoriented.

☐ REPORT

to the Spanish Agency for Data Protection on compliance with the requirements in the previous point, proving such compliance, for example, through the photographs mentioned in the previous paragraph." The respondent replied by providing images of what the installed cameras captured once their orientation was modified.

FOURTH: On November 25, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Articles 5.1.c) and 13 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: After the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the respondent submitted a written statement in which, in summary, she stated that the cameras were installed in 2015 after several attempts to enter her home.

She points out that "(...) the cameras are directed at the facade of my house. (...) all the cameras, if they have no other choice, focus on a minimal portion of the vehicle passage area (each house has an individual pedestrian passage area that is not monitored by my house's cameras), are configured in such a way that the common areas appear in black. (...) I then attach the images recorded by the cameras located on the balcony of the second floor of my house (...)"

"The 'camera 1' focuses on the door of the garage itself and the window of the dining room. The 'camera 2' focuses on the terrace of the first floor and the planters themselves. As can be seen in the upper part of the image, there is a black rectangle that covers the insignificant portion of the ramp that the camera would record and that, therefore, prevents recording part of the vehicles that go up or down that ramp. Under no circumstances can any car be recorded, nor the license plate or the people who may be inside it. The little margin that is recorded of my property would be the strict space that a person would use if they tried to jump onto the balcony.

"(...) Camera 3. This camera records the side of the facade of my house, its corresponding windows, and my planters. Under no circumstances does the camera capture images of the ramp or the street as the black boxes (the 'coverage area') prevent it.

"Camera 4". The camera records the balcony of the dining room. If someone wanted to enter the house using a ladder, there would be evidence of it, but the images do not focus on the common vehicle passage area. Again, if a car were to pass by, there is no record of it unless it hit the garage of my house (...)

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There is a "camera 5" that was focused on my garden but has not been functioning for years; I have left this camera on the railing of the second-floor terrace as a piece of "props."

Regarding the lack of informative signs, I state that "(...) Since its installation in 2015, there has always been a sign indicating the existence of the cameras. However, in September, coinciding with the complaint to the Agency (...), the sign was vandalized. I found it broken on the ground. Until I could fix it, I temporarily placed it in one of the windows of my garage, which is true that it is not a good place to position it since the glass is somewhat opaque (...) As soon as I fixed the sign, I placed it back in a clearly visible location. I attach an image."

SIXTH: On January 5, 2023, a written request was sent to the respondent to supplement the documentation initially submitted by providing clear and sufficiently high-quality images of what the cameras capture, and a response was received by this Agency on February 1, 2023, providing new images.

SEVENTH: On February 27, 2023, the instructor of the procedure agreed to open a period for the practice of evidence, considering the documents submitted by the respondent incorporated into the file.

EIGHTH: On January 13, 2023, a proposal for resolution was formulated, in which, after examining the photographs from the respondent, it was observed:

- One of the cameras is not functioning.
- Regarding the other cameras, they capture a minimal part of the exterior of the property, and it could be considered that they are compliant with the law.
- Regarding the informative sign of the video surveillance area, it is again meeting the requirements established by data protection regulations.

It was proposed that the complaint filed be archived.

In this proposal, a period of 10 days was granted for the respondent to present any arguments they deemed necessary in their defense, as well as to submit any documents and information they considered pertinent, in accordance with Article 89.2 of the LPACAP, with no response having been received.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: On September 21, 2022, a complaint was received by this Spanish Agency for Data Protection indicating that the respondent has several video surveillance cameras installed at their residence that are oriented towards the access ramp to the residence of both the complainant and the respondent, as well as a third neighbor, and the areas surrounding these residences, without obtaining the consent of

those affected, also stating that the area is not adequately marked with the required informative signs of the video surveillance area, being capable of capturing images of areas of the complainant's property.

Photographic evidence was provided.

SECOND: Existence of five video surveillance cameras installed at ***ADDRESS.1.

- One of them is not functioning.
- Regarding the other cameras, they capture a minimal part of the exterior of the property, and it could be considered that they are compliant with the law.
- Regarding the informative sign of the video surveillance area, it is again meeting the requirements established by data protection regulations.

THIRD: The person responsible for the video surveillance system is D^a B.B.B. with NIF ***NIF.1.

FOURTH: The respondent has provided several photographs of what the cameras capture, and none of them show the complainant's property.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Article 22 of the LOPDGDD establishes the specificities of data processing for video surveillance purposes, indicating the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras with the...

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for the purpose of preserving the safety of individuals and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section. However, it will be possible to capture images of the public road to a greater extent when necessary to ensure the safety of strategic property or facilities or infrastructures related to transportation, without in any case allowing for the capture of images from inside a private home.

3. The data will be deleted within a maximum period of one month from its capture, unless it must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time the existence of the recording is known. The obligation to block provided for in Article 32 of this organic law will not apply to these treatments.

4. The information duty provided for in Article 12 of Regulation (EU) 2016/679 will be considered fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device. In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

5. Under Article 2.2.c) of Regulation (EU) 2016/679, the processing of images captured solely from the interior of one's own home by a natural person is considered excluded from its scope of application. This exclusion does not cover processing carried out by a private security entity that has been contracted to monitor a home and has access to the images.

6. The processing of personal data derived from images and sounds obtained through the use of

cameras and camcorders by the Security Forces and Bodies and by the competent authorities for monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic will be governed by the legislation transposing Directive (EU) 2016/680 when the processing has the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or executing criminal sanctions, including protection and prevention against threats to public safety. Outside of these cases, such processing will be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law.

7. The provisions of this article are understood without prejudice to what is provided in Law 5/2014, of April 4, on Private Security and its implementing provisions.

8. The processing by the employer of data obtained through camera or camcorder systems is subject to the provisions of Article 89 of this organic law.”

III

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

- Respect the principle of proportionality.
- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.
- The camcorders may not capture images of individuals who are outside the private space where the video surveillance system is installed, as the processing of images in public places can only be carried out, unless there is government authorization, by the Security Forces and Bodies. They may also not capture or record spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

This rule admits some exceptions as, in some cases, for the protection of private spaces where cameras have been installed on facades or inside, it may be necessary to record a portion of the public road to ensure the security purpose. That is, cameras and camcorders installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location, and extraordinarily, the minimum space necessary for that purpose will also be collected. Therefore, the cameras could exceptionally capture the minimally necessary portion for the intended security purpose.

- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and 22 of the LOPDGDD, must be fulfilled as already indicated.
- The controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.
- The installed cameras may not obtain images of third-party private space and/or public space without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

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the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is therefore permitted.

- In no case will the use of surveillance practices beyond the environment subject to the installation be allowed, and in particular, it must not affect the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

In summary, and to facilitate consultation for interested parties, the Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"), as well as the Guide on the use of video cameras for security and other purposes, and the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

IV

In the present case, it is necessary to analyze the alleged illegality of the installation of a video surveillance system at ***ADDRESS.1.

After examining the file as a whole, it has been observed that:

- One of the cameras is not functioning.
- Regarding the other cameras, they capture a minimal part of the exterior of the property, and it could be considered that they are compliant with the law.
- Regarding the informative sign of the monitored area, it is once again fulfilling the requirements established by the data protection regulations.

V

The principle of the right to the presumption of innocence, recognized as a fundamental subjective right in Article 24 of the Spanish Constitution, prevents the imposition of an administrative sanction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged offender in them, applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The aforementioned right to the presumption of innocence is also expressly included in Article 53.2.b) of the LPACAP, which establishes that:

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"2. In addition to the rights provided in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

[...] b) To the presumption of non-existence of administrative responsibility until proven otherwise."

In relation to this principle, the Constitutional Court in its Judgment 76/1990, of April 26, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

Therefore, in accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present proceedings as no administrative infringement has been substantiated.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm

resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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